

CHAPTER 8.71: SPECIAL EVENTS ON PUBLIC STREETS AND PUBLIC FACILITIES

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§ 8.71.010 INTENT AND PURPOSE.

(A) The intent of this chapter is to identify special events and to specify the requirements and provisions for their approval when the proposed location is on a public street or public facility.

(B) The requirements and provisions established for each special event are intended to ensure the general safety, health and welfare of the community and to ensure that the temporary operation of the special event will be a compatible activity for the neighborhood in which it is located.

(Ord. 2972, passed - -2000)

§ 8.71.020 DEFINITIONS.

For the purpose of this chapter, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

BLOCK PARTY. An event where all or a portion of a public residential street or road will be temporarily closed to normal vehicular traffic and circulation.

PUBLIC FACILITY. Includes any city maintained or owned facility other than a city owned park or open space area. A public parking area or parking structure is a type of **PUBLIC FACILITY**. Public schools are exempt from the provisions of this chapter except for non school-related programs or activities.

PUBLIC STREET. Includes any publicly maintained or owned street, road, highway, alley, sidewalk, parkway, bridge, culvert drain, right-of-way and any facility or other area in the city necessary for the construction, improvement and maintenance of streets and roads.

SPECIAL EVENT. An event that will be conducted outdoors to which the general public is admitted or invited. Such an event includes a carnival, festival, tent or car show, circus, parade, auction, rally or a similar kind of temporary outdoor exhibition or performance. A block party is a type of **SPECIAL EVENT**.

(Ord. 2972, passed - -2000)

§ 8.71.030 PERMIT REQUIRED.

(A) A special event shall be prohibited to take place on a public street and/or a public facility unless a properly issued special event permit is first issued to the applicant. An application for a special event on such public property shall be filed with the Director of Public Works.

(B) An application for a special event within a city owned public park or open space area shall be filed with the Director of Parks and Recreation in accordance with Chapter 9.12 of this code.

(C) An application for a special event on private property shall be filed with the Director of Development Services in accordance with Chapter 15.58 of this code.

(D) No permit shall be required for any special event in which the city and/or the City Redevelopment Agency agree to participate as a co-sponsor. The City Manager and/or Executive Director of the Redevelopment Agency shall determine the qualifications of an organization and event for co-sponsorship by the city and/or Redevelopment Agency and shall declare

such co-sponsorship when there are the following findings:

- (1) The organization is nonprofit as determined by the Internal Revenue Service;
- (2) The majority of the organization's members and officers are residents of the city, however, this requirement may be waived for the city to co-sponsor an event with another local government agency;
- (3) The participating organization has agreed to pay at least one-half of all extra or special costs, including extra police officers, that the Director of Public Works determines to result from, or be incurred in, conducting the special event;
- (4) There have been adequate funds budgeted to cover the city's or the Redevelopment Agency's share of the expenses of such an event; and
- (5) The event is compatible with the goals and objectives of the Redevelopment Agency for the Central Business District.

(Ord. 2972, passed - -2000)

§ 8.71.040 APPLICATION FOR PERMIT AND FEES.

(A) An application for a special event permit must be on file with the Director of Public Works at least 90 days before the scheduled special event. At the discretion of the Director of Public Works, the 90-day time period may be waived and/or the application may be referred to the City Council for consideration.

(B) The City Council may, by resolution, set appropriate fees for the filing of the application.

(C) An application for a special event permit shall be on a form provided by the city and shall provide the information necessary to make recommendations and/or provisions for approval. At a minimum, the following information shall be provided:

- (1) The applicant's identity and the identity of a responsible person who will serve as the primary interface for communications;
- (2) A diagram of the proposed special event venue area that clearly delineates the geographical boundaries of the event and indicates the location of any temporary buildings and structures, including any stages or vendor's booths;
- (3) A description of the type of special event to be held and the duration of the activities;
- (4) The expected number of participants, assistants, workers and spectators to be involved in the special event;
- (5) All proposed security measures and directional devices for the event;
- (6) All toilets, trash disposal and water facilities that will be provided; and
- (7) A petition stating the nature of the request, date, time, location or event, name of event coordinator and/or primary contact person, printed names and signatures of business owners and/or residents of properties adjacent to the proposed venue indicating support/approval of the event. Comments may be listed on a separate sheet and attached to the petition.

(Ord. 2972, passed - -2000)

§ 8.71.050 REQUIREMENTS AND PROVISIONS FOR APPROVAL OF PERMIT.

(A) Requirements or provisions shall be imposed on any special event permit whenever the public health and safety so require. At a minimum, said provisions shall include the following:

- (1) The payment of a refundable security deposit and filing fee in the amount authorized by a resolution of the City Council;
- (2) The special event shall only take place within a prescribed geographical area with set boundaries. The special event permit holder shall post signs at locations as appropriate as designated by the Director of Public Works to clearly and conspicuously indicate the boundaries of the venue area of the special event;
- (3) The special event permit holder shall provide traffic control measures or detour plans as deemed necessary by the Director of Public Works;
- (4) The special event permit holder shall provide sanitation, trash collection and disposal measures for the special event and has agreed to clean up immediately after the event;
- (5) The duration and hours of operation of the event are compatible with the surrounding uses;
- (6) The Director of Public Works is satisfied with the location of temporary buildings and structures, including any stages or vendor's booths;
- (7) The special event permit holder has made sufficient arrangements to provide adequate parking for the people attending the event;
- (8) The special event permit holder has agreed to specified noise restrictions as deemed necessary by the Director of

Public Works;

(9) All bonds and policies of liability insurance in an amount satisfactory to the city are obtained, and the special events permit holder has signed an indemnification clause holding the city and its officers, agents, employees and volunteers harmless;

(10) (a) The special event permit holder has obtained a statement from the Chief of Police, or a designated agent, showing either that no police attendance at the event is necessary, or that the applicant has arranged for the number of police officers deemed necessary to attend the event for peace and safety of those attending, and that such designated number of police officers shall be provided at the expense of the applicant; and

(b) In determining the number of police officers, or whether any are necessary, the Chief of Police shall give consideration to the estimated number and the age of attendees, the nature of the activity or event, the site selected, the potential for conflict with other events, and the experience of police departments locally and nationally with similar events.

(11) In the case that an alcoholic beverage, as that term is defined by the State Alcoholic Beverage Control Act, Cal. Business and Professions Code Division 9 (commencing with § 23000), is served and/or sold at the special event, the Chief of Police is satisfied that appropriate security measures have been taken and that the special event permit holder has secured a daily license from the State Alcohol and Beverage Control Board and obtained a host liquor liability insurance policy as required by the City Risk Management Department; and

(12) In the case that food will be prepared and sold at the special event, the special event permit holder has obtained a commercial temporary food permit (or an exemption for nonprofit organizations) from the County Health Care Agency, Public Health Division of Environmental Health.

(B) Those having the responsibility to review and approve the application may stipulate additional provisions or requirements.

(Ord. 2654, passed - -1988; Ord. 2972, passed - -2000)

§ 8.71.060 PROCEDURE FOR REVIEW OF APPLICATION.

(A) A decision to approve an application for a special event permit on a public street or a public facility shall be made by the Director of Public Works after consultation with other departments in the city.

(B) The Director of Public Works may notify business owners and/or residents of properties adjacent to the proposed event site, stating the intent to review the petition and provide a decision to the event coordinator/primary contact.

(C) (1) If the venue area of the special event is located within a parking district, the application shall be referred to the Board of Parking Place Commissioners to conduct a public hearing.

(2) The Board of Parking Place Commissioners may impose conditions to ensure that the proposed special event will not negatively impact businesses or property owners within the venue area of the special event, and that the special event will not constitute a threat to the public health, safety or welfare.

(D) If the venue area of the special event is located outside of a parking district, the application shall be referred to the Chief of Police, Fire Chief and Director of Development Services, all of whom shall review the application and recommend conditions to the Director of Public Works so that the proposed special event will not constitute a threat to the public health, safety or welfare.

(E) The special event permit may be approved given the following findings:

(1) The event will be conducted by a nonprofit organization, community organization or local business, which has its principal office or place of business within the city;

(2) The event will promote the city, its residents and/or its businesses;

(3) The conduct of the event will be consistent with the preservation of the public peace, health and safety; and

(4) The conduct of the event within the prescribed special event venue area will not result in an unreasonable interference with the use of adjacent real properties.

(F) Upon approval of the Board of Parking Place Commissioners and/or Director of Public Works, the permit shall thereafter be issued only after all applicable fees are paid, bonds posted and insurance certificates and endorsements in the proper amount and form are on file with the city.

(Ord. 2972, passed - -2000)

§ 8.71.070 DECISION ON APPLICATION AND APPEAL OF DECISION.

(A) In the case of a special event that may be approved by the Director of Public Works, within 15 days after receipt of an application, the Director shall apprise an applicant in writing of the decision that either approves the request, conditionally approves the request or denies the request with the reasons for denial stated. The Director's decision shall be final unless within ten days of receipt of the Director's decision a written appeal is filed, with payment of any applicable fees. The Board of Parking Place Commissioners shall conduct a public hearing within 30 days following the filing of the written appeal. The

action of the Board of Parking Place Commissioners shall be final unless within ten days of the decision of the Board of Parking Place Commissioners, a written appeal is filed, with payment of any applicable fees, with the City Council/City Clerk.

(B) In the case of a special event that shall be reviewed and approved by the Board of Parking Place Commissioners, the review shall be conducted within 45 days of the submittal of the application. The decision by the Board of Parking Place Commissioners shall be final unless, within ten days of the decision, a written appeal is filed, with payment of any applicable fees, with the City Council/City Clerk.

(C) In the case of an appeal made to the City Council, the City Council shall conduct a public hearing within 30 days following the receipt of the written appeal. The City Council shall consider the application under the standards set forth in this chapter and sustain or overrule the decision of the Board of Parking Place Commissioners. The decision of the City Council shall be final.

(Ord. 2972, passed - -2000)

§ 8.71.080 SUSPENSION OF PERMIT.

(A) The Director of Public Works and/or the Chief of Police shall have the power to suspend, and shall suspend, any special event permit if the applicant has done any of the following:

- (1) Violated any provision or requirement of approval imposed upon the permit;
- (2) Violated any provisions of law; or

(3) With the actual conduct of the activity, threatened the preservation of the public peace, safety or general welfare, or unreasonably interfered with the use and enjoyment of other property in the immediate vicinity of the activity.

(B) The Director of Public Works and/or the Chief of Police shall give the applicant written notice of the suspension, and immediately upon the giving of the notice of the order of suspension, all activities under the permit shall forthwith cease. The decision of the Director of Public Works and/or the Chief of Police with reference to a suspension shall be final and conclusive.

(Ord. 2972, passed - -2000)

§ 8.71.090 BUSINESS LICENSES.

(A) A special event permit issued pursuant to this chapter shall control over any business licenses issued pursuant to § 4.02.010 . Only those vendors who have received prior written approval from the special event permit holder shall be allowed to operate within the prescribed venue area of the special event. The written approval shall not be unreasonably withheld.

(B) The special event permit holder may charge a reasonable registration fee of all vendors who desire to operate within the prescribed venue area of the special event.

(Ord. 2972, passed - -2000)